

Manoj Sharma vs State on 15 December, 2025

DLSH010062472024

Page 1 of 7

CrI. Rev. No. 208/2024

Manoj Sharma & Anr.

Vs.

The State (Govt. of NCT of Delhi)

FIR No. 507/2021

IN THE COURT OF SPECIAL JUDGE (NDPS),
SHAHDARA, KARKARDOOMA COURTS, DELHI

Criminal Revision No. 208/2024

In the matter of :-

(1) Manoj Sharma,
S/o Sh. Hansraj Sharma

(2) Deepak Sharma,
S/o Sh. Hansraj Sharma

Both R/o H.No. P-58, Gali No. 4,
Bihari Colony, Shahdara,
Delhi-110032.

..... Revisionists
(through Sh. Gaurav Seth, Advocate)

Versus

The State (Govt. of NCT of Delhi)

.....Respondent
(through Ld. Addl. PP for the State)

CRIMINAL REVISION PETITION UNDER SECTION
397/399 OF CR.P.C., 1973 r/w SECTION 438/440 OF BNSS

Date of institution : 04.10.2024

Date when judgment reserved : 04.11.2025

Date of Judgment : 15.12.2025

DLSH010062472024

Page 2 of 7

CrI. Rev. No. 208/2024

Manoj Sharma & Anr.

Vs.

The State (Govt. of NCT of Delhi)
FIR No. 507/2021

JUDGMENT:

1. The present revision petition has been filed U/s 397/399 Cr.P.C. r/w Section 438/440 BNSS on behalf of revisionists/ accused persons against the order dated 21.08.2024 passed by Ld. JMFC (Mahila Court-01), Shahdara District, Karkardooma Courts, Delhi in FIR No. 507/2021, vide which order for framing of charges was passed against revisionist/ accused Manoj Sharma for commission of offences punishable U/s 354D/506/195A IPC and against revisionist/ accused Deepak Sharma for commission of offences punishable U/s 354D/509 IPC.

Factual Matrix

2. Succinctly stated, the complainant alleged that on 06.01.2021 accused Manoj Sharma had threatened her mother to withdraw previous cases. On 24.12.2020 accused Deepak Sharma had followed sister of the complainant and also passed indecent gesture in order to threaten her which were also seen by friends of the sister of the complainant. In her statement U/s 164 Cr.P.C., sister of the complainant reiterated the said allegations.

3. Vide impugned order dated 21.08.2024 other accused persons namely Rachna and Hema were discharged, both the revisionists/ accused persons were also discharged qua commission of offence U/s 354A IPC, revisionist/ accused Manoj Sharma was discharged qua offence punishable U/s 509 IPC, Manoj Sharma & Anr.

Vs. The State (Govt. of NCT of Delhi) however order for framing of charges was passed against revisionist/ accused Manoj Sharma for commission of offences punishable U/s 354D/506/195A IPC and against revisionist/ accused Deepak Sharma for commission of offences punishable U/s 354D/509 IPC.

Grounds of Revision

4. Being aggrieved of the above-said order, the revisionists have assailed the same and prayed for setting aside/ modifying the said order.

5. During arguments, Ld. Counsel for the revisionists restricted his arguments only in respect of offence punishable U/s 354D IPC. It is contended by Ld. Counsel that from the complaint and statements U/s 161 & 164 Cr.P.C. of the witnesses the ingredients required to constitute offence punishable U/s 354D IPC are not made out.

6. Formal reply was filed by the complainant in response to the present petition wherein it is mentioned that there are clear allegations in the complaint as well as in the statements U/s 164

Cr.P.C. qua offence punishable U/s 354D IPC. It is contended that the revisionists/ accused persons are habitual offenders and there are a number of cases pending between complainant party and revisionists/ accused persons. It is contended that revisionists/ accused persons are from upper caste and complainant is belonging to SC/ST community and revisionists/ accused persons Manoj Sharma & Anr.

Vs. The State (Govt. of NCT of Delhi) do not want their family to live in that locality. It is requested that the revision petition be dismissed with heavy cost.

During arguments, it is contended by Ld. Counsel for complainant that offence punishable U/s 354D IPC is made out in the present case as revisionists/ accused persons had followed and stalked the mother and sister of the complainant.

Ld. Addl. PP for the State also argued on the same points. It is also stated by him that the order passed by Ld. Trial Court is well reasoned and should not be interfered with in revision petition.

7. Arguments heard on behalf of both the parties and record perused carefully.

8. Section 354D IPC reads as under :-

"354D. Stalking (1) Any man who -

(i) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or

(ii) monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking:

Provided that such conduct shall not amount to stalking if the man who pursued it proves that--

(i) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the State; or

(ii) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or

(iii) in the particular circumstances such conduct was Manoj Sharma & Anr.

Vs. The State (Govt. of NCT of Delhi) reasonable and justified.

(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine."

9. In the present matter, there are no allegations of monitoring, the use of internet, email or electric communication by the victims being committed by the revisionists/ accused persons. Thus, the act of the revisionists/ accused persons must fall within the ambit of sub-clause (i) of sub-section (1) of Section 354D IPC. Thus, the essential ingredients to prove offence punishable U/s 354D IPC in the present matter are as follows :-

- (a) The man accused follows a woman, and
- (b) Contacts or attempts to contacts such woman;
- (c) To foster personal interaction;
- (d) repeatedly;
- (e) despite a clear indication of disinterest by such woman.

10. In the case in hand, there is no evidence that the revisionists/ accused persons repeatedly followed the mother or sister of the complainant in order to foster personal interaction despite clear indication of disinterest.

Rather the allegations against revisionist/ accused Manoj Sharma are that he met the mother of the complainant and threatened her to take back the case. His conduct would fall within the ambit of Sections 506 and 195A IPC, but would not constitute Manoj Sharma & Anr.

Vs. The State (Govt. of NCT of Delhi) offence punishable U/s 354D IPC.

Similarly, the allegations against revisionist/ accused Deepak Sharma are that he followed sister of the complainant on 24.12.2020 and passed indecent gestures and comments. His conduct would fall within the ambit of Section 509 IPC, but would not constitute offence punishable U/s 354D IPC.

In both the instances the revisionists/ accused persons did not contact the victims repeatedly despite show of disinterest by victims in order to foster personal interaction. Thus, from the allegations leveled by the complainant and victims ingredients to constitute offence punishable U/s 354D IPC are not made out.

11. Keeping in view the totality of circumstances and observations as above, it is held that ingredients to constitute offence punishable U/s 354D IPC are lacking in the complaint and statements of the victims. Thus, offence U/s 354D IPC is not made out against revisionists/ accused persons. Thus, the revisionists/ accused persons are accordingly, discharged qua offence punishable U/s 354D IPC. As such, impugned order dated 21.08.2024 passed by the Ld. Trial Court is partially modified/ partially set-aside in respect of offence punishable U/s 354D IPC. The impugned order is upheld qua framing of charges U/s 506/195A IPC against revisionist/ accused Manoj Sharma and

qua framing of charge U/s 509 IPC against revisionist/ accused Deepak Sharma. The trial shall proceed, accordingly.

Manoj Sharma & Anr.

Vs. The State (Govt. of NCT of Delhi)

12. The present revision petition stands disposed of, accordingly. Copy of this judgment alongwith Trial Court Record be sent back to the Ld. Trial Court for information and proceeding further, as per law.

13. This file be consigned to Record Room after due compliance.

Digitally GAJENDER signed by Announced in the open Court SINGH GAJENDER SINGH NAGAR on 15th December 2025 NAGAR (Gajender Singh Nagar) Special Judge (NDPS Act) Shahdara, Karkardooma Courts Delhi/15.12.2025